

Rishal Singh v. State of U.P. And Others

High Court of Judicature at Allahabad · Division Bench · 5 April 2012 · Writ-C No. 16830 of 2012 · **Writ dismissed; consumer must first seek bill correction from the department.**

HEADNOTE

A consumer's writ against excess billing and disconnection was dismissed for alternative remedy. The Court declined to interfere until the petitioner first approached the electricity department under the bill-correction procedure in the U.P. Electricity Supply Code, 2005. The petition contained no averment, and annexed no representation, of any such approach.

FACTUAL SUMMARY

Rishal Singh, an electricity consumer, challenged excess billing and disconnection of supply. He claimed that an amount deposited in 2010 had not been adjusted, that a disconnection notice dated 5 February 2011 demanded Rs. 50,009, and that he received a February 2011 bill of Rs. 52,254. His connection was disconnected without the bills being corrected. The writ petition contained no averment, and annexed no representation, that he had approached the electricity department for correction of the bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

bill correction; alternative remedy

HOLDING

The High Court will not entertain a writ against excess billing and disconnection until the consumer first approaches the electricity department for correction of bills under the detailed procedure in the U.P. Electricity Supply Code, 2005; the petition is dismissed for alternative remedy. ¶ 1

FLAG order cites the Supply Code bill-correction procedure without numbering a clause

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer's writ against excess billing and disconnection was dismissed for alternative remedy. The Court declined to interfere until the petitioner first approached the electricity department under the bill-correction procedure in the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE EXCESSIVE OR THE 2010 DEPOSIT REMAINED UNADJUSTED

¶ 1

NOT DECIDED — WHETHER DISCONNECTION OF SUPPLY WAS LAWFUL

¶ 1